

ORIGINAL

CIVIL RIGHTS COMPLAINT
42 U.S.C. § 1983

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

FILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.

★ DEC 08 2015 ★

-----X
OSIRIS MOSLEY,
Full name of plaintiff/prisoner ID#

CV 15

BROOKLYN OFFICE
7042

Plaintiff,

JURY DEMAND
YES ☒ NO ☐

-against-

Police Officer MATTHEW LAMBERT,
Shield #14548; Police Sergeant JOHN DOE,
(sued in his individual capacity),

Enter full names of defendants

[Make sure those listed above are
identical to those listed in Part III.]

COGAN, J.

Defendants.
-----X

I. Previous Lawsuits:

- A. Have you begun other lawsuits in state or federal court dealing with the same facts involved in this action or otherwise relating to your imprisonment? Yes () No (☒)
- B. If your answer to A is yes, describe each lawsuit in the space below (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same outline.)

1. Parties to this previous lawsuit:

Plaintiffs: _____

Defendants: _____

2. Court (if federal court, name the district;
if state court, name the county)

3. Docket Number: _____

4. Name of the Judge to whom case was assigned: _____

5. Disposition: (for example: Was the case dismissed? Was it appealed? Is it still pending?)

6. Approximate date of filing lawsuit: _____

7. Approximate date of disposition: _____

II. Place of Present Confinement: Anna M. Cross Center, Rikers Island

A. Is there a prisoner grievance procedure in this institution? Yes (☒) No ()

B. Did you present the facts relating to your complaint in the prisoner grievance procedure? Yes () No (☒)

C. If your answer is YES,

1. What steps did you take? _____

2. What was the result? _____

D. If your answer is NO, explain why not This incident did not take place inside an institution.

E. If there is no prison grievance procedure in the institution, did you complain to prison authorities? Yes () No ()

N/A

F. If your answer is YES,

1. What steps did you take? _____

2. What was the result? _____

III. Parties:

(In item A below, place your name in the first blank and place your present address in the second blank. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff Osiris Mosley
Address Anna M. Kross Center, 18-18 Hazen St., E. Elmhurst, NY 11370

(In item B below, place the full name and address of each defendant)

B. List all defendants' names and the addresses at which each defendant may be served.
Plaintiff must provide the address for each defendant named.

Defendant No. 1

Police Officer Matthew Lambert, Shield No. 14548
The 88th Precinct, 298 Classon Ave.
Brooklyn, NY

Defendant No. 2

Police Sergeant JOHN DOE
The 88th Precinct, 298 Classon Ave.
Brooklyn, NY

Defendant No. 3

Defendant No. 4

Defendant No. 5

[Make sure that the defendants listed above are identical to those listed in the caption on page 1].

IV. Statement of Claim:

(State briefly and concisely, the facts of your case. Include the date(s) of the event(s) alleged as well as the location where the events occurred. Include the names of each defendant and state how each person named was involved in the event you are claiming violated your rights. You need not give any legal arguments or cite to cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. You may use additional 8 1/2 by 11 sheets of paper as necessary.)

On or about November 15, 2015 at 8:30 A.M., at the location of Waverly Urban Market 367 Waverly ave., Brooklyn, New York while I was being detained by store employees I was viciously assaulted by numerous store employees inside the stores interior.

Shortly thereafter numerous police officers arrived including defendants Lambert and Doe. The store employees reported to defendants Lambert and Doe that I had attempted to leave the store without payment of various items and I was arrested. I also reported and identified to defendants Lambert and Doe the store employees who repeatedly punched me, dragged me across the floor and stomped and kicked me, and requested

→ see next page.

IV.A If you are claiming injuries as a result of the events you are complaining about, describe your injuries and state what medical treatment you required. Was medical treatment received?

My constitutional rights were blatantly violated and I was forced to endure mental anguish and distress.

that I file charges against such employees.

Defendants Lambert and Doe told me "you deserve to be beaten" and "We are not going to charge anyone, but you". I then requested to go to the hospital for my injuries and I was transported by ambulance to Brooklyn Hospital Center.

Defendants Lambert and Doe while acting under color of the state law violated my constitutional rights to Equal Protection of the law and my Due Process rights under the Fourteenth Amendment to the United States Constitution. In that they failed to arrest the store employees who were on camera hitting and assaulting me and of which they had actual knowledge that I was assaulted but decided to skirt their duties because I was first accused of theft from the store.